

HOUSE No. 3299**The Commonwealth of Massachusetts**

PRESENTED BY:

Antonio F. D. Cabral

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to modernize participation in public meetings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>1/8/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/30/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/30/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>1/30/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/6/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/6/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>2/6/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/6/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>2/6/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>2/6/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>2/12/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>2/12/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>2/12/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/24/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/24/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/24/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>2/24/2025</i>

<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>2/24/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>2/24/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/24/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/24/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>2/26/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>2/26/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/3/2025</i>
<i>John H. Rogers</i>	<i>12th Norfolk</i>	<i>3/3/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>3/3/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/5/2025</i>
<i>Daniel M. Donahue</i>	<i>16th Worcester</i>	<i>3/5/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/5/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/7/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/7/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>3/7/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>3/11/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/11/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>3/18/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>3/18/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>3/18/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>3/18/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/25/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>4/6/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/6/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>4/7/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>5/15/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>7/10/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>7/10/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>8/11/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>11/6/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>12/1/2025</i>

HOUSE No. 3299

By Representative Cabral of New Bedford, a petition (accompanied by bill, House, No. 3299) of Antonio F. D. Cabral and others relative to participation in public meetings. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to modernize participation in public meetings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 18 of chapter 30A of the General Laws, as appearing in 2022
2 Official Edition, is hereby amended by inserting after the word “meeting”, in line 9, the
3 following word:- information.

4 SECTION 2. Section 18 of said chapter 30A, as so appearing, is hereby further amended
5 by inserting at the end thereof the following:-

6 “Remote access,” access through the internet, video conferencing or other video
7 technology that allows the public to view and, when permitted or required, participate in a
8 meeting of a public body remotely from a location other than the meeting location.

9 “Remote participation,” participation by a member of a public body in a meeting of that
10 public body through internet, video conferencing or other video technology remotely from a
11 location other than the meeting location.

SECTION 3. Chapter 30A is hereby amended by striking out section 20 and inserting in place thereof the following section:

Section 20 (a) Except as provided in section 21, all meetings of a public body shall be physically open, and remotely accessible, to the public.

(b) Except in an emergency, in addition to any notice otherwise required by law, a public body shall post notice of every meeting at least 48 hours prior to the meeting, excluding Saturdays, Sundays and legal holidays. In an emergency, a public body shall post notice as soon as reasonably possible prior to the meeting. Notice shall be printed in a legible, easily understandable format and shall contain the date, time and place of the meeting and a listing of topics that the chair reasonably anticipates will be discussed at the meeting.

(c) For meetings of a local public body, notice shall be filed with the municipal clerk and posted to the municipal website by the municipal clerk and may be posted in a manner conspicuously visible to the public at all hours in or on the municipal building in which the clerk's office is located. For meetings of a regional or district public body, notice shall be filed and posted in each city or town within the region or district in the manner prescribed for local public bodies and notice shall be posted on the regional or district public body's website. For meetings of a regional school district, the secretary of the regional school district committee shall be considered to be its clerk and shall file notice with the clerk of each city or town within the district and the clerk of such each city or town shall post the notice in the manner prescribed for local public bodies, and notice shall be posted on the regional school district's website. For meetings of a county public body, notice shall be filed in the office of the county commissioners for the county and shall be posted on the county public body's website, and notice may be posted

in a manner conspicuously visible to the public at all hours in the places as the county commissioners shall designate for the purpose.

For meetings of a state public body, notice shall be filed with the attorney general by posting on a website under the procedures established for this purpose and a duplicate copy of the notice shall be filed with the regulations division in the state secretary's office and notice shall be posted on the state public body's website, or the website of its parent agency.

The chair of a public body may petition the attorney general for the use of an alternative method of notice where the use of a website is unduly burdensome or presents a hardship to the public body or regional school district. The attorney general may prescribe or approve alternative methods of notice where the attorney general determines that the use of a website is unduly burdensome or presents a hardship and the alternative methods will afford effective notice to the public.

(d) (1) All public bodies shall provide for remote access and remote participation at every meeting.

(2) Members of a public body participating physically or participating remotely in a meeting shall participate in the same manner for the duration of that meeting. A public body, other than a local commission on disability, shall have at least one-third of its members physically present at all meetings and members participating remotely may vote, count towards the quorum, and shall not be deemed absent for the purposes of section 23D of chapter 39. The chair of a local commission on disability or, in the chair's absence, the person authorized to chair the meeting of a local commission on disability, shall be physically present at the meeting location.

(3) Members of a state public body participating physically or participating remotely in a meeting shall participate in the same manner for the duration of that meeting. A state public body shall have at least one of its members physically present at all meetings and members participating remotely may vote, count towards the quorum, and shall not be deemed absent for the purposes of section 23D of chapter 39. All meetings of a state public body shall be video recorded with access to the recording posted on the website of the public body within 10 business days after the meeting.

(4) Remote access allowing the public to view or participate in the deliberations of a public body shall be available without any paid subscription, toll, or similar charge. All public bodies shall ensure remote access to meetings is accessible to persons with disabilities and provided in such a manner as to ensure equal opportunity to such persons. Public bodies shall include captioning, which may be provided through automatic speech recognition technology, or other reasonable accommodations if needed, consistent with the American Disabilities Act and chapter 151B to persons with disabilities remotely accessing the meeting.

(6) All public bodies shall ensure that remote participation by members is accessible to members with disabilities and provided in such a manner as to ensure equal opportunity to such members. Public bodies shall include captioning, which may be provided through automatic speech recognition technology, or other reasonable accommodations if needed, consistent with the American Disabilities Act and chapter 151B to persons with disabilities participating remotely.

(e) After notifying the chair of the public body, any person may make a video or audio recording of an open session of a meeting of a public body, or may transmit the meeting through

any medium, subject to reasonable requirements of the chair as to the number, placement and operation of equipment used so as not to interfere with the conduct of the meeting. At the beginning of the meeting, the chair shall inform other attendees of any recordings.

(f) No person shall address a meeting of a public body without permission of the chair, and all persons shall, at the request of the chair, be silent. No person shall disrupt the proceedings of a meeting of a public body. If, after clear warning from the chair, a person continues to disrupt the proceedings, the chair may order the person to withdraw from the meeting and if the person does not withdraw, the chair may authorize a constable or other officer to remove the person from the meeting.

(g) Within 2 weeks of qualification for office, all persons serving on a public body shall certify, on a form prescribed by the attorney general, the receipt of a copy of the open meeting law, regulations promulgated under section 25 and a copy of the educational materials prepared by the attorney general explaining the open meeting law and its application under section 19. Unless otherwise directed or approved by the attorney general, the appointing authority, city or town clerk or the executive director or other appropriate administrator of a state or regional body, or their designees, shall obtain certification from each person upon entering service and shall retain it subject to the applicable records retention schedule where the body maintains its official records. The certification shall be evidence that the member of a public body has read and understands the requirements of the open meeting law and the consequences of violating it.

SECTION 4. Section 22 of chapter 30A of the General Laws, as so appearing, is hereby amended by striking subsection (a) and inserting in place thereof the following subsections:-

99 (a) A public body shall create and maintain accurate minutes of all meetings, including
100 executive sessions, setting forth the date, time and place, the members present or absent, a
101 summary of the discussions on each subject, a list of documents and other exhibits used at the
102 meeting, the decisions made, and the actions taken at each meeting, including the record of all
103 votes. Minutes of all meetings, including executive sessions, shall be created, and approved by
104 the following meeting or within 30 days, whichever is later, unless the public body can show
105 good cause for further delay.

106 SECTION 5. Section 22 of said chapter 30A, as so appearing, is hereby further amended
107 by striking subsection (c) and inserting in place thereof the following:-

108 (c) The minutes of an open session, if they exist and whether approved or in draft form,
109 shall be made available upon request to any person within 10 business days. A public body may,
110 within 10 business days, refer the requester to the public body's website where the requested
111 minutes, whether approved or in draft form, may be found. Within 10 business days of approval,
112 minutes of an open session shall be posted to the public body's website.

113
114 SECTION 6. Said Section 22 of said chapter 30A, as so appearing, is hereby further
115 amended by inserting after the word "meeting", in line 60, the following words:-

116 Within 10 business days of a determination that continued non-disclosure of executive
117 session minutes is no longer warranted, such executive session minutes shall be posted to the
118 public body's website.

119 SECTION 7. Said section 22 of said chapter 30A, as so appearing, is hereby further
120 amended by inserting after the word “review”, in line 69, the following words:-

121 A public body may, within 10 business days, refer the requester to the public body’s
122 website where the requested minutes may be found if all requested minutes have been released to
123 the public.

124

125 SECTION 8. Section 23 of said chapter 30A, as so appearing, is hereby amended by
126 inserting after the word “violation”, in line 34, the following words: or a civil penalty of not
127 more than \$200 against any member of a public body for a third or subsequent knowing
128 violation. A civil penalty against an individual member of a public body shall not be
129 reimbursable with public funds.

130 SECTION 9. Subsection (c) of said section 23 of said Chapter 30A, as so appearing, is
131 hereby further amended by striking out the seventh clause and inserting in place thereof the
132 following clauses:- (7) issue a private education letter to a member of a public body; (8)
133 reprimand a member of a public body; provided, however, that no member of a public body shall
134 be reprimanded unless the attorney general has issued a private education letter to said member
135 within the past twelve months; or; (9) prescribe other appropriate action.

136 SECTION 10. Subsection (f) of said section 23 of said Chapter 30A, as so appearing, is
137 hereby further amended by inserting at the end thereof the following paragraph:-

138 The remedy created hereby is not exclusive but shall be in addition to every other
139 available remedy. In an action brought by 3 or more registered voters, such order of notice may
140 also require the public body to reimburse said voters reasonable attorney's fees and court costs.

141 SECTION 11. Sections 1 through 10 of this act shall take effect on April 1, 2025.